

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX
-----X

PATRICK A. WELLER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
MICHAEL FINNERTY, POLICE OFFICER VINCENZO
VALENZA, POLICE DETECTIVE OTIS TAYLOR, and
JOHN DOES – Police Officers as yet unidentified,

Defendants.
-----X

Index #
Date of filing:

Plaintiff designates
Bronx County as the
place of trial

Basis of the venue is
Location of Accident

SUMMONS

Plaintiff resides at:
3023 Hone Avenue
Bronx, NY 10469
County of Bronx

TO THE ABOVE NAMED DEFENDANTS:
YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy
of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance,
on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of
service (or within 30 days after the service is complete if this summons is not personally delivered to
you within the State of New York); and in the case of your failure to appear or answer, judgment will
be taken against you by default for the relief demanded herein.

DEFENDANTS' ADDRESS:
THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE
DEPARTMENT
1 Police Plaza
New York, New York 10038

POLICE OFFICER MICHAEL FINNERTY
47th Precinct – Auto Crime Division
4111 Laconia Avenue
Bronx, New York 10466

POLICE OFFICER VINCENZO VALENZO
47th Precinct – Auto Crime Division
4111 Laconia Avenue
Bronx, New York 10466

POLICE DETECTIVE OTIS TAYLOR
47th Precinct – Auto Crime Division
4111 Laconia Avenue
Bronx, New York 10466

Dated: Brooklyn, New York
December 29, 2016

PLAINTIFF'S ATTORNEYS:
RUBENSTEIN & RYNECKI, ESQS.
16 Court Street, Suite 1717
Brooklyn, New York 11241
(718)522-1020

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
PATRICK A. WELLER,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
MICHAEL FINNERTY, POLICE OFFICER VINCENZO
VALENZA, POLICE DETECTIVE OTIS TAYLOR, and
JOHN DOES – Police Officers as yet unidentified,

Defendants.

-----X

Plaintiff, PATRICK A. WELLER, by his attorneys, RUBENSTEIN & RYNECKI,
ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to
this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST
AND BATTERY ON BEHALF OF PATRICK A. WELLER**

1. That at all times hereinafter mentioned, plaintiff was and still is a resident
of the County of Bronx, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK,
was and still is a municipal corporation, duly organized and existing pursuant to the laws of the
State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known
as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on September 12, 2016, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries

and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. That on December 9, 2016, pursuant to the General Municipal Law, a Statutory 50-H hearing was held.

6. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER MICHAEL FINNERTY, as agent, servant and/or employee.

7. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER VINCENZO VALENZA, as agent, servant, and/or employee.

8. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE DETECTIVE OTIS TAYLOR, as agent, servant, and/or employee.

9. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed JOHN DOES – Police Officers as yet unidentified, as agents, servants, and/or employees.

10. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, PATRICK A. WELLER, was lawfully present at or near the premises known as 1 East 233rd Street, County of Bronx, City and State of New York.

11. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES- Police Officers as yet unidentified, were working within the scope of their employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, when they arrested and confined the plaintiff, PATRICK A. WELLER.

12. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

13. That as a result of the aforesaid false arrest and confinement, plaintiff, PATRICK A. WELLER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

14. By the reason of the foregoing, the plaintiff, PATRICK A. WELLER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF PATRICK A. WELLER**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That on August 17, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

17. That defendants, POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

18. By the reason of the foregoing, the plaintiff, PATRICK A. WELLER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING AND RETENTION ON
BEHALF OF PATRICK A. WELLER**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. Defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, PATRICK A. WELLER.

21. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and Improper conduct of the defendants, POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

22. By the reason of the foregoing, the plaintiff, PATRICK A. WELLER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF PATRICK A. WELLER**

23. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "22" inclusive with the same force and effect as if more fully set forth at length herein.

24. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, PATRICK A. WELLER, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

25. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, acting under color of law and

within the scope of their authority, deprived the plaintiff, PATRICK A. WELLER, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

26. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

27. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

28. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

29. That the defendants' actions were not privileged or immune.

30. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

31. By the reason of the foregoing, the plaintiff, PATRICK A. WELLER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN FIFTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF PATRICK A. WELLER**

32. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "31" inclusive with the same force and effect as if more fully set forth at length herein.

33. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

34. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to defendants, POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

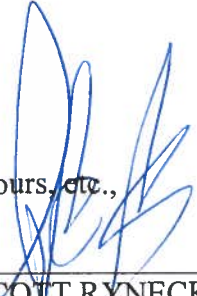
35. By the reason of the foregoing, the plaintiff, PATRICK A. WELLER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, PATRICK A. WELLER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, PATRICK A. WELLER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, PATRICK A. WELLER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, PATRICK A. WELLER, demands judgment both

compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, PATRICK A. WELLER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
December 29, 2016

Yours, etc.,



SCOTT RYNECKI, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
16 Court Street Suite 1717
Brooklyn, New York 11241
(718) 522-1020

ATTORNEY'S VERIFICATION

SCOTT RYNECKI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner at RUBENSTEIN & RYNECKI, attorneys of record for Plaintiff, in the action within. I have read the annexed **COMPLAINT**, and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
January 4, 2017



Scott Rynecki

PLEASE take notice that the within is a (*certified*) true copy of a duly entered in the office of the clerk of the within named court on

Dated, Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

NOTICE OF SETTLEMENT

PLEASE take notice that an order

of which the within is a true copy will be presented for settlement to the Hon.

one of the judges of the within named Court, at

on at M.
Dated,

Yours, etc.

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address
16 COURT ST.
BROOKLYN, N.Y. 11241

To

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

PATRICK A. WELLER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MICHAEL FINNERTY, POLICE OFFICER VINCENZO VALENZA, POLICE DETECTIVE OTIS TAYLOR, and JOHN DOES – Police Officers as yet unidentified,

Defendants.

Signature (Rule 130-1.1-a)

SUMMONS AND VERIFIED COMPLAINT

Print name beneath

RUBENSTEIN & RYNECKI ESQS.

Attorneys for

Office and Post Office Address, Telephone
16 COURT ST.
BROOKLYN, N.Y. 11241
(718) 522-1020

To

Attorney(s) for

Service of a copy of the within is hereby admitted.
Dated

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Attorney(s) for